

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUWT023824: JOSE GALVAN vs S&P GLOBAL, et al.

09/10/2026 in Department 21

Motion for Summary Judgment for Market Scan Information Systems, Inc.

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Market Scan Information Systems, Inc. Motion for Summary Judgment or, in the Alternative, Summary Adjudication (*Opposed*)

Tentative Ruling: Defendant Market Scan Information Systems, Inc.’s motion for summary judgment is GRANTED. The motion for summary adjudication is DENIED as moot.

Moving party is ordered to prepare a proposed judgment for the Court’s signature and serve notice of the Court’s ruling.

Discussion:

Preliminary Matters

Late Opposition/Motion to Strike Notice of Errata: Plaintiff did not timely file a separate opposition to Market Scan’s motion. Market Scan filed a Notice of Non-Opposition on June 4, 2026; Plaintiff filed a Notice of Errata on June 5 attaching an opposition and supporting documents. Counsel explained the omission as inadvertent, Market Scan received an extended opportunity to respond, filed a substantive reply, and identifies no resulting prejudice. The Court denied Market Scan’s motion to strike the late opposition on September 9 and will consider the late opposition.

Separate Statement Defect: The Notice of Errata states that Plaintiff’s Market Scan opposition papers are “nearly identical” to the S&P opposition papers, with the defendant’s name changed in the captions. Plaintiff did not submit point-by-point responses to Market Scan’s separate statement (Plaintiff’s response is to the separate statement filed by S&P, not Market Scan); Market Scan’s July 10 response therefore states that each of its UMFs was not disputed. The

Court nevertheless considers the admissible evidence and Plaintiff's separately stated additional facts in determining whether Market Scan carried its burden and whether a triable issue exists. A procedural failure to respond does not relieve the moving defendant of its initial burden. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851.)

Prior S&P Ruling: On July 27, 2026, the Court denied S&P's motion for summary judgment and granted summary adjudication only as to the whistleblower-retaliation, breach-of-contract, and IIED causes of action. The Court's evidentiary and factual rulings on the overlapping record are useful for consistency, but Market Scan's motion presents a distinct threshold question: whether Market Scan remained Plaintiff's employer or joint employer after S&P acquired the company.

Evidentiary Objections

Plaintiff's evidentiary objections Nos. 1-6 are **OVERRULED**. The challenged declarations are based on the declarants' participation in the decision-making process; contrary circumstantial evidence concerning Matthew Hermann's knowledge goes to weight rather than admissibility. Plaintiff's objection to the Cauvel "Notes to File" is **OVERRULED** with the limitation that the notes may show documented perceptions and reasons but do not, merely by their existence, establish the objective truth of every performance criticism.

Market Scan's objection No. 105 is **SUSTAINED** for purposes of this motion.

Market Scan's objections Nos. 27, 35-38, 61-62, 102, 106, 121-123, and 128-130 are **OVERRULED**.

No ruling is required on Market Scan's remaining evidentiary objections because the challenged evidence is not material to the grounds on which the Court resolves this motion. (Code Civ. Proc., § 437c, subd. (q).)

Material Facts

Market Scan's UMF's:

Market Scan's UMF Nos. 1-39, 42-50, 52-63, and 65 are **UNDISPUTED** and **ESTABLISHED**. UMF Nos. 40-41 are **DISPUTED** and **NOT ESTABLISHED**. UMF Nos. 51 and 64 are **DISPUTED** but **ESTABLISHED** subject to the qualifications stated below. UMF Nos. 66-90 are established only as incorporation statements and do not independently establish the associated legal conclusions.

As to Market Scan's UMF No. 51, Plaintiff testified that he doubted Hermann would actually investigate or remediate the issue, while his later declaration states he believed Hermann was in a position to address it. Both statements may be considered; neither resolves the statutory authority question as a matter of law.

As to Market Scan's UMF No. 64, the S&P decisionmakers submitted declarations denying knowledge of Plaintiff's Market Scan whistleblower complaints. Plaintiff offers no

nonspeculative evidence that Hermann conveyed those complaints to Cauvel, Sandora, Mondragon, or Chermela before the termination decision. The same overlapping record was treated as established in the Court's July 27, 2026 ruling.

Plaintiff's AMF's:

Plaintiff's AMF Nos. 1-4, 7-9, 11, 13-14, 16-20, 22-24, 28-34, and 36-37 are UNDISPUTED and ESTABLISHED, subject to the qualifications stated below. AMF Nos. 5-6, 10, 12, 15, 21, 25-27, and 35 are DISPUTED and NOT ESTABLISHED as stated or cited.

AMF No. 1 is established to the extent Plaintiff worked continuously for Market Scan and then S&P from approximately 2000 to January 2024. This does not establish that S&P itself employed him for 23 years.

AMF No. 13 is established in that the evidence supports that Volvo was reassigned and that Cauvel texted Gagnier stating he had told Plaintiff. It does not establish that Plaintiff himself was notified by text.

AMF No. 17 is established as the statement was made. Hermann's explanation of what he meant is also established and relevant to the inference, if any, drawn from it.

AMF No. 18 is established as the quoted statements were made exactly as asserted. Their significance regarding whether termination had been finally predetermined remains disputed.

AMF No. 22 contains an erroneous pinpoint citation. The same quoted testimony appears elsewhere in the record at approximately Mondragon Depo. 149:4-10, which Plaintiff cited correctly in responding to S&P's UMFs.

AMF No. 28 accurately describes the Regional People Advisor's stated responsibilities. The employee-initiation requirement is additional context, not a contradiction.

AMF No. 29 is established on the evidence cited. Defendant identifies no evidence that S&P actually gave Plaintiff CFRA notice or designated his leave as CFRA leave. Access to a general policy does not factually contradict the AMF.

AMF No. 36 accurately describes that the July 9 email concerned Plaintiff. S&P's response identifies citation-completeness issues but does not offer evidence contradicting the quoted email or the identities of "James" and "him."

Merits

Threshold Employment/Joint-Employer Issue: Market Scan establishes that Plaintiff became solely an S&P employee on March 1, 2023 for purposes of the challenged post-acquisition employment decisions. Plaintiff's general allegation that Defendants were an "integrated enterprise" and "joint employer" (FAC, ¶ 11) is not evidence. The admissible record shows S&P assumed Plaintiff's payroll and benefits, increased his salary, placed him in an S&P reporting

chain, assigned his accounts through S&P managers, and terminated him. (Market Scan UMF Nos. 19-30; Chermela Decl., ¶¶ 10-11; Cauvel Decl., ¶ 2.) Under *Vernon v. State of California* (2004) 116 Cal.App.4th 114, 123-126, the principal inquiry is the totality of circumstances, with particular emphasis on the putative employer's right to control the means and manner of work. No evidence shows that Market Scan retained the requisite post-acquisition control.

Plaintiff relies primarily on Hermann's continued presence, his advance knowledge of the planned termination, his January 8 email concerning the purchase agreement, and his post-termination "didn't fit the mold" comment. These facts permit an inference that Hermann remained knowledgeable about acquisition-related matters and retention terms. They do not show that Market Scan paid Plaintiff, supervised his work, assigned his accounts, imposed the PIP, evaluated his performance, approved his leave, or decided to terminate him. The Court already found in the S&P ruling that Hermann was not a termination decisionmaker for purposes of the whistleblower causation issue.

First Cause of Action-Disability Discrimination: GRANTED. Plaintiff alleges disability arising from his December 2023 wrist injury and termination after his January 2024 return. (FAC, ¶¶ 34-37.) Market Scan's employment ended February 28, 2023; Plaintiff admits he did not consider himself disabled and did not believe Market Scan perceived him as disabled during that employment. (UMF Nos. 10-11.) He also suffered no discipline, demotion, PIP, pay reduction, administrative leave, or termination while employed by Market Scan. (UMF Nos. 12-17.) The post-injury S&P record may create triable issues against S&P, as the Court previously held, but it does not create a disability-discrimination claim against Market Scan. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354-356; *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 432.)

Second and Third Causes of Action-Accommodation/Interactive Process: GRANTED. FEHA requires a covered employer to reasonably accommodate a known disability and to engage in a timely, good-faith interactive process. (Gov. Code, § 12940, subds. (m), (n); *Scotch v. Art Institute of California-Orange County, Inc.* (2009) 173 Cal.App.4th 986, 1009-1010; *Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54.) Plaintiff was not disabled while employed by Market Scan and made no accommodation request during that employment. (UMF Nos. 10, 31.) The December 2023 medical notes, surgery, leave, and return restrictions were presented to S&P, not to Market Scan as Plaintiff's employer. The Court's earlier denial of S&P's motion on these causes therefore does not extend liability to Market Scan.

Fourth Cause of Action-Race Discrimination: GRANTED. The FAC alleges that after the acquisition Plaintiff's valuable accounts were reassigned to white coworkers, that S&P managers burdened and scrutinized him, and that he was later terminated. (FAC, ¶¶ 25-37.) Market Scan establishes that all account assignment, supervision, PIP, and termination decisions were made after Plaintiff became an S&P employee and by S&P personnel. (UMF Nos. 19, 24-30.) Although the Court found triable race-discrimination issues against S&P, including comparator evidence, these facts do not establish an adverse employment action by Market Scan. (*Guz, supra*, 24 Cal.4th at p. 355.)

Fifth Cause of Action-FEHA Retaliation: GRANTED. A FEHA retaliation claim requires protected activity, an adverse employment action, and a causal link. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) Plaintiff admits he did not complain of discrimination, harassment, retaliation, or failure to accommodate and did not request an accommodation while employed by Market Scan. (UMF Nos. 31-32.) His disability-related requests arose after he was employed by S&P. No Market Scan adverse action followed any FEHA-protected activity.

Sixth Cause of Action-Failure to Prevent: GRANTED. A failure-to-prevent claim under Government Code section 12940, subdivision (k), requires an underlying actionable discrimination, harassment, or retaliation violation. (*Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 284.) Because the FEHA claims against Market Scan fail, the derivative claim also fails. Market Scan's handbook, complaint procedures, and training are additional evidence relevant to reasonable preventive steps (UMF Nos. 1-5, 33), but the Court does not recommend adjudication solely on the existence of written policies. (See *California Fair Employment & Housing Commission v. Gemini Aluminum Corp.* (2004) 122 Cal.App.4th 1004, 1024-1025.)

Seventh Cause of Action-Wrongful Termination in Violation of Public Policy: GRANTED. A *Tameny* wrongful-termination claim lies against the employer that terminated the plaintiff. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 900-901; see also *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167.) The undisputed record establishes that S&P, not Market Scan, employed and terminated Plaintiff in January 2024. (UMF Nos. 28-30.) Plaintiff cannot impose the termination on Market Scan merely through the FAC's joint-employer allegation, because the evidence does not support post-acquisition control by Market Scan.

Eighth and Ninth Causes of Action-CFRA Retaliation/Interference: GRANTED. Plaintiff's qualifying medical condition, doctor's notes, and leave arose in December 2023 and January 2024, when S&P was the employer receiving and administering the leave information. Plaintiff did not request medical leave during the relevant Market Scan employment period. (UMF Nos. 8-9.) Although an employee need not use the label "CFRA" and an employer with sufficient notice may have a duty to inquire further (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 879-880), the relevant notice was given to S&P after Market Scan ceased employing Plaintiff.

Tenth Cause of Action-Unfair Competition: GRANTED. The FAC expressly predicates the UCL claim on Defendants' discriminatory employment practices, particularly disability and race discrimination. (FAC, ¶¶ 105-108.) Because Plaintiff has not established an actionable FEHA predicate against Market Scan, the derivative UCL claim fails as to Market Scan. (*Sullivan v. Oracle Corp.* (2011) 51 Cal.4th 1191, 1207.)

Eleventh Cause of Action-Labor Code section 1102.5: GRANTED, but not on every ground asserted.

Protected activity/reasonable belief. Labor Code section 1102.5, subdivision (b), protects disclosure to a person with authority over the employee, or to another employee with authority to investigate, discover, or correct a violation, where the employee reasonably

believes the information discloses a legal violation. The employee need not prove that a violation actually occurred. (*Ross v. County of Riverside* (2019) 36 Cal.App.5th 580, 592; *People ex rel. Garcia-Brower v. Kolla's, Inc.* (2023) 14 Cal.5th 719, 729-733.) Plaintiff testified that he believed Market Scan improperly extracted and resold confidential manufacturer/lender data and raised the concern to owner Rusty West and COO Matthew Hermann. Although Market Scan offers evidence concerning permitted-use agreements and Plaintiff's uncertainty as to a specific statute, the Court does not find the reasonableness issue resolved as a matter of law. This is consistent with the Court's July 27 S&P ruling.

Recipient authority. Market Scan argues Plaintiff doubted Hermann would actually investigate or remediate the issue. This does not establish lack of statutory protection. Section 1102.5 is phrased disjunctively and protects a disclosure to "a person with authority over the employee" as well as to another employee who has investigatory or corrective authority. Evidence that West was the owner and Hermann was Market Scan's COO is sufficient to defeat Market Scan's Issue 17 as framed.

Pleading/timing. The FAC alleges that Plaintiff complained to Defendants about the allegedly illegal data method and that "soon after" he was overly scrutinized and eventually terminated. (FAC, ¶ 112; see also FAC, ¶¶ 23-24.) Read with the common factual allegations, the pleaded retaliatory sequence is post-acquisition. Plaintiff's opposition adds separate 2007 and December 2022 disclosures, but a plaintiff may not defeat summary judgment by materially expanding the operative theory beyond the pleadings. (*Todd v. Dow* (1993) 19 Cal.App.4th 253, 258; *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382; *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258.) Thus Issue 15 is a sufficient alternative ground as to the post-acquisition retaliation theory actually pleaded against Market Scan.

Causation independently defeats the claim. Under Labor Code section 1102.6, Plaintiff must establish by a preponderance that protected activity was a contributing factor in a contested employment action. (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 712, 718.) The S&P decisionmakers denied knowledge of Plaintiff's complaints; Plaintiff presents no evidence that Hermann communicated the complaint to them. Hermann's advance knowledge of the termination, January 8 email concerning retention-program language, and post-termination call establish communication about consequences of a decision already made, not that he caused the decision because of whistleblowing. The Court already reached this conclusion on the same record in granting S&P summary adjudication of the section 1102.5 claim. Market Scan itself took no adverse action against Plaintiff. Issue 18 is therefore GRANTED and the Eleventh Cause of Action summarily adjudicated in Market Scan's favor.

Twelfth Cause of Action-Breach of Oral Contract: GRANTED on Issue 20; Issue 19 is DENIED.

The FAC alleges an oral agreement under which Defendants promised to "take care of" Plaintiff for contracts he sold, and alleges that he was not paid for millions of dollars in contracts. (FAC, ¶¶ 118-120.) Market Scan's evidence is that Rusty West alone made the statement in approximately 2006, it was never memorialized, and Plaintiff described it as having "no actual

number” and as “just words.” (UMF Nos. 53-56.) A contract requires sufficiently definite mutual assent on material terms. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; *Roth v. Malson* (1998) 67 Cal.App.4th 552, 557; *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357-358.) The phrase “take care of” supplies no compensation formula, amount, timing, scope, or objective standard. The record therefore does not permit a finding of an enforceable oral compensation contract.

Code of Civil Procedure section 339 supplies a two-year limitations period for an oral contract, but Market Scan relies principally on the fact that the statement was made in 2006. The limitations period ordinarily runs from breach/accrual, not simply from formation, and Market Scan does not establish when the alleged payment obligation became due or when the alleged breach occurred. Issue 19 is DENIED even though Issue 20 disposes of the cause of action.

Thirteenth Cause of Action-Intentional Infliction of Emotional Distress: GRANTED for Market Scan. IIED requires extreme and outrageous conduct undertaken with intent to cause, or reckless disregard of the probability of causing, emotional distress; severe emotional distress; and causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903; *Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.) The conduct on which Plaintiff relies-account reassignment, PIP, disability handling, and termination-was undertaken by S&P personnel after Plaintiff became an S&P employee. Market Scan did not employ Cauvel, Sandora, or Mondragon and did not control their employment decisions. (UMF Nos. 24-30, 62.)

Hermann’s post-termination “didn’t fit the mold” comment is admissible but does not, standing alone, rise to conduct “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.) Plaintiff also testified that his emotional distress was intermittent and that he sought no treatment. (UMF Nos. 59-61.) Consistent with the July 27 S&P ruling, the record is insufficient to establish the severe-distress element as a matter of law. Issue 22 is nevertheless denied as a stand-alone ground because the tort permits reckless disregard, not only specific intent; Issues 21, 23, and 24 dispose of the claim.

Punitive Damages: GRANTED. Civil Code section 3294 requires clear and convincing evidence of oppression, fraud, or malice, and corporate liability additionally requires qualifying conduct, authorization, or ratification by an officer, director, or managing agent. (Civ. Code, § 3294, subds. (a)-(b); *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 726; *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 573.) Plaintiff’s punitive-damages showing principally concerns S&P’s PIP and termination decisions by Cauvel, Sandora, Mondragon, and Chermela. These persons were not Market Scan employees or managing agents during the relevant period. The evidence concerning Hermann does not support a clear-and-convincing inference that he personally committed, authorized, or ratified actionable oppression, fraud, or malice by Market Scan. The Court’s July 27 order denying punitive-damages summary adjudication as to S&P does not require the same result for Market Scan because the corporate predicate and underlying conduct are different.

Order

Plaintiff's evidentiary objections Nos. 1-6 are **OVERRULED**, subject to the limitation stated above concerning Cauvel's Notes to File. Market Scan's objection No. 105 is **SUSTAINED**; objections Nos. 27, 35-38, 61-62, 102, 106, 121-123, and 128-130 are **OVERRULED**; and no ruling is required on the remaining Market Scan objections under Code of Civil Procedure section 437c, subdivision (q).

Defendant Market Scan Information Systems, Inc.'s Motion for Summary Judgment is **GRANTED**. Market Scan has established that Plaintiff ceased being its employee no later than February 28, 2023; the post-acquisition employment decisions challenged in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Tenth, and Thirteenth Causes of Action were made by S&P Global and its personnel; and Plaintiff has not produced evidence supporting a triable joint-employer theory against Market Scan after March 1, 2023. The remaining pre-acquisition theories, the Eleventh and Twelfth causes of action for whistleblower retaliation and breach of oral contract, independently fail for lack of causation and lack of a sufficiently definite contract, respectively.

Defendant Market Scan to give notice.